IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-516
CP (CAA) No. - 20/230/232/ND/2022

IN THE MATTER OF:
Jet Hotels Pvt. Ltd. And Jetair Business Solutions Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 02.11.2022**

CORAM:
JUSTICE TELAPROLU RAJANI,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Adv. Ajit Singh Tawar
For the Respondent : Adv. Priyadarshini Dewan, Adv. Sumeet Kaul and Adv. Swechcha Mishra for RD, Ms. Hemlata Rawat Counsel for OL, Adv. Gaurav Raj Shrawat for Income Tax Department

ORDER

We have heard Counsels for Applicant, OL, RD and Income Tax Department. Counsel for RD has submitted that there is some investigation of SFIO which is pending against one of the companies concerned. Counsel for Applicant has submitted that he will place on record certain judgments which will clarify that the procedure for amalgamation is not affected by on going process of investigation by SFIO. Counsel for OL has submitted that they have filed the report and there are certain observations which the Tribunal may consider at the time of argument and Counsel for Income Tax Department has submitted that they have filed their complete report in the matter. Counsel for Applicant is directed to file the judgments on which he is relying and the matter may now be posted after 2 weeks when the arguments of the Applicant, Income Tax Department, RD and OL will be heard. Post this matter on **01.12.2022.**

-Sd/-

(RAHUL BHATNAGAR)
MEMBER (T)

-Sd/-

(JUSTICE TELAPROLU RAJANI)
MEMBER (J)

Khushboo